

MOMENTUM

Web Design · Custom Builds

WEBSITE DESIGN & HOSTING SERVICE AGREEMENT

Between Momentum and AJ Commercial Group

1. The Parties

This Agreement is entered into by and between:

Momentum, operated by Dillon Kenna ("Service Provider"), email **dmkmarketing33@gmail.com**, phone (708) 790-6337 — referred to in this Agreement as "Momentum" or "we."

AJ Commercial Group ("Client"), located at 14300 S Town Center Dr, Homer Glen, IL 60491 — referred to in this Agreement as "AJCG" or "you."

This Agreement becomes effective on the date both parties sign below ("Effective Date").

2. What Momentum Will Deliver

Momentum will design, develop, and launch a custom website for AJ Commercial Group that includes the following:

- A fully designed and developed multi-page website matching the demo previously presented and approved by AJCG
- Mobile-responsive design across phone, tablet, and desktop
- Lead-capture forms (Quick Valuation, Buyer Inquiry, Selling Inquiry, 1031 Exchange, Contact, and Careers) connected to the AJCG GoHighLevel account so submissions route to the correct sub-account
- A simple backend admin app for AJCG to manage content, including: adding new "Recently Sold" property listings, posting blog articles, and viewing basic SEO performance
- Standard SEO foundations: meta tags, sitemap, schema markup, and search-engine indexing
- Launch on the AJ Commercial Group domain with SSL/HTTPS enabled

3. What Is Not Included

To keep the scope clear, this Agreement does NOT include:

- Building, customizing, or cleaning up GoHighLevel automations, workflows, pipelines, sequences, or campaigns. Momentum's GHL responsibility under this Agreement is limited to connecting the website forms to the AJCG GoHighLevel account.
- Custom GoHighLevel dashboards, AI integrations, chatbots, or analytics layers beyond the basic backend app described in Section 2
- Email marketing, SMS marketing, paid advertising, or content writing beyond what is required to launch the website

- Photography, videography, or graphic design beyond the use of materials AJCG provides
- Domain registration or transfer (AJCG is responsible for domain ownership and DNS access)
- Migration of historical CRM data, contact lists, or legacy content from third-party platforms

Any of the above items may be added under a separate written agreement with separate pricing. Nothing in this Agreement obligates Momentum to perform work outside the scope in Section 2.

4. Fees and Payment

One-Time Build Fee: \$2,000.00 USD, payable in full prior to the start of work via FanBasis payment link.

Monthly Hosting & Maintenance Fee: \$50.00 USD per month, billed automatically through FanBasis beginning on the website launch date and continuing until canceled in writing.

Payments are non-refundable once work has begun. Late or failed monthly payments may result in suspension of hosting and maintenance services until the account is current.

5. Timeline

Momentum will deliver and launch the website within approximately 5 to 7 business days after both of the following are received:

- Cleared one-time payment of \$2,000
- Required access from AJCG: domain DNS access (GoDaddy) and GoHighLevel agency-level access

If AJCG delays providing access, the timeline shifts accordingly. Momentum is not responsible for delays caused by external factors outside our control (including DNS propagation, third-party platform outages, or delays in receiving access or content from AJCG).

6. Revisions

Two (2) rounds of revisions are included in the One-Time Build Fee. A "round" means one consolidated set of feedback delivered together. Additional revisions, redesigns, or new feature requests beyond the agreed scope will be quoted separately at \$150 per hour or as a fixed-price scope, whichever is preferred.

7. What the Monthly Fee Covers

The \$50/month fee covers the following ongoing services:

- Hosting on Vercel CDN with automatic SSL/HTTPS renewal
- Daily uptime monitoring
- Standard security headers and basic DDoS protection
- Minor content edits and updates as requested by AJCG (text changes, photo swaps, blog posting assistance, small layout tweaks)
- Routine maintenance and small bug fixes

Larger work — new pages, new features, redesigns, or anything beyond a minor edit — is not covered by the monthly fee and will be quoted separately.

8. Ownership

Once the One-Time Build Fee is paid in full and the website is launched, AJCG owns:

- All website content, copy, and design specific to AJCG
- The website source code (delivered via GitHub repository access)
- Any AJCG-provided assets (logos, photos, video, brand materials)

Momentum retains the right to display the completed work in our portfolio, on our website, and in marketing materials, and to reference AJCG as a client. AJCG may opt out of public portfolio inclusion in writing.

9. Cancellation and Termination

The monthly hosting and maintenance subscription may be canceled by AJCG at any time with 30 days' written notice (email is acceptable). Once cancellation takes effect, hosting and maintenance services end and the AJCG website may be removed from Momentum-managed hosting infrastructure.

If AJCG cancels the subscription but wishes to keep the website live, Momentum will hand off the source code and provide reasonable assistance transferring hosting to a new provider — billable at \$150 per hour.

Momentum may terminate this Agreement if AJCG fails to pay any invoice more than 30 days past due, breaches a material term of this Agreement, or uses the website for unlawful purposes.

10. Limitation of Liability

Momentum will perform all work with reasonable professional care. However, Momentum is not liable for:

- Lost business, lost revenue, lost commissions, or lost opportunities resulting from website downtime, third-party platform outages, or events outside our control
- Issues caused by AJCG actions, including unauthorized changes to the codebase, hosting account, or domain settings
- Performance, behavior, or outages of third-party services we connect to (including GoHighLevel, Vercel, Google services, payment processors, or DNS providers)
- Indirect, consequential, incidental, or punitive damages of any kind

Momentum's total liability under this Agreement is limited to the total amount AJCG has paid Momentum in the twelve (12) months preceding any claim.

The website is delivered "as is" with the features described in Section 2. Momentum makes no warranty that the website will increase business, generate leads, or improve search rankings, although standard professional best practices will be applied throughout.

11. Confidentiality

Both parties agree to keep non-public information shared during this engagement (financial details, client lists, strategy discussions) confidential and to use it only for the purposes of this Agreement.

12. Governing Law

This Agreement is governed by the laws of the State of Illinois. Any disputes that cannot be resolved between the parties will be brought in the state or federal courts of Illinois.

13. Entire Agreement

This Agreement contains the complete understanding between Momentum and AJCG regarding the website build and ongoing hosting. It replaces any prior verbal or written agreements on the same subject. Changes to this Agreement must be made in writing and signed by both parties.

14. Signatures

By signing below, both parties agree to the terms of this Agreement.

M O M E N T U M

A J C O M M E R C I A L G R O U P

Signature
Dillon Kenna
Owner, Momentum

Signature
Authorized Representative
(Print name and title)

Date

Date